
Stoke Holy Cross Audit Report

Audit Date: 6 December 2019

Report: Year 2 visit 1

DPE: Linda Mortimer

School member: Jeanette Chaney

1. Visit details

Details highlighted at the time of the last visit were discussed. GDPR documents and policies were also reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 7 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 6.1 below).

Review actions from previous visit on 9.5.19

All actions from visit on 9.5.19 have been addressed with the exception of:

Staffroom - medical care plan on display:

Student care plans are still on display however they are now turned over. The Headteacher has reviewed the risks that may arise from Care Plans being on display despite DPE's advice. The decision has been made to continue with this practice in the interest of the student's safety.

LM will request a copy of Saxligam's disclaimer and forward to Stoke Holy Cross for their information.

Introduce a procedure to ensure school iPads and cameras are regularly cleansed of student images.

Introduce a procedure to ensure that the school's network and server are cleansed of student images as well as out of date documents. Liaise with JC Commtech ICT Technician to enable these routines.

Audit walk and findings on 6.12.19

In-house monitoring of GDPR compliance: The Headteacher regularly carries out GDPR audit walks and keeps a log when a PC is left unlocked. Verbal warnings have been given to staff and regular reminders of GDPR good practice are delivered at staff meetings and on Inset days.

School Reception: Visitors should be signposted to where they can find the school's Privacy Notice, ie the school's website.

If PC monitors can be viewed by visitors, suggest that a security film is applied, which significantly reduces visibility.

Secure Print: the school will ask their ICT Technician to enable this facility on the school's photocopier/printers.

Governance: the Headteacher will provide a copy of DPE's response to the NCC Themed Audit to the Governors.

Photocopy Room: A box of papers, due for shredding, dated back to 2016 and including paperwork showing student PII information.

Year 3 Classroom: Notice on door showing student's full names. Some student work on display also included student's full names.

Withdrawal Room: Student intervention reports and paperwork stored in open bag, placed in clear view. Assessment records relating to an ex-student, dating back to June 2013, were also in clear view.

Student records, consent forms and details of students taking part in the 'Talk Boost' intervention strategy were also easily accessible. These included records relating to a vulnerable student.

As a matter of urgency please review, assess, cleanse or store these records appropriately.

Year 5 Classroom: 'Our Class Rules' included full names. Topic, French and Science exercise books included student's full names. Some work displayed also included student's full names.

Food Tech Room: This room is also used by the PTA, volunteers, outside agencies and 'Schools Out' club.

Unlocked cupboard containing the following:

- Student allergy information.
- SENCo file containing SEND student profile as well as records of student who attends another school.
- Register folder containing details of safeguarding incidents and actions taken. Records of accidents with full names and parent contact details.
- Folder of papers for filing including student registration forms with parent contact details. Student collection passwords.
- Cashbox with key in lock and cash within.
- Team meeting folder including staff profiles, ex-staff profiles. Accident report folder.

Year 6 Classroom: Student full names used on Topic, Science, Maths, English, French and RE exercise books.

File containing Progress Meeting notes. PE spreadsheet detailing student full names.

Desk – student work with full names in an open file.

Cupboard – File containing 'Learning Conversations' and plans for SEND students and also ex-students.

Staffroom: Care Plans remain on wall but are turned over. Please see note above regarding review of risks relating to this practice.

Staff pigeon holes containing a member of staff's medical needs information, peer to peer observations, filing going back to summer 2019.

1. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice**
- **GDPR Policy**
- **Data Breach Procedure**
- **SAR procedure**
- **Photo and Video consent, guidelines and records**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;

- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

1.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

1.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

1.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

1.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

2. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

3. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

4. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

4.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

5. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>